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No. 84933-6
King County Superior Court Case No. 22-2-01739-2 SEA

COURT OF APPEALS
DIVISION I
OF THE STATE OF WASHINGTON

RUTH SCOTT, individually, and as personal representative of the ESTATE OF MIKAEL SCOTT, a deceased individual; JEFF MUHLEMAN, individually, and as personal representative of the ESTATE OF TYLER MUHLEMAN, a deceased individual; and CINDY CRUZ, individually,

Plaintiffs/Respondents,

v.

AMAZON.COM, INC., a Delaware corporation,

Defendant/Petitioner.

AMAZON'S MOTION FOR DISCRETIONARY REVIEW

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IDENTITY OF PETITIONER

The moving party is defendant Amazon.com, Inc.

INTRODUCTION AND DECISION BELOW

Plaintiffs claim that Amazon is liable for the deaths of their sons, who committed suicide using sodium nitrite—a product that was (and still is) perfectly legal to sell in the United States—that they purchased on Amazon's online store. Amazon seeks discretionary review of the trial court's Order Denying Defendant's CR12(b)(6) Motion to Dismiss, dated December 30, 2022 ("Order").

The trial court denied Amazon's motion to dismiss in its entirety and without explanation. In a hearing on Amazon's motion to certify under RAP 2.3(b)(4), the court acknowledged that this is a quintessential case for discretionary review, and that nearly all of Plaintiffs' claims are barred by Washington law. But the court denied the motion to certify because it did not agree with the specific questions in Amazon's motion, which Amazon necessarily had to frame without the benefit of any reasoning

behind the denial. The trial court was right in one respect: its order denying Amazon's motion to dismiss is precisely the type of order that should be reviewed immediately by this Court.

Washington law does not impose liability for selling a legal product that the purchaser intentionally misuses to commit suicide. As this Court has held, Washington law "requires a showing that the injury-causing product was defective before liability can be imposed" on a seller. *Knott* v. *Liberty Jewelry & Loan, Inc.*, 50 Wn. App. 267, 276, 748 P.2d 661 (1988). And the product here was not defective. The label adequately warned purchasers against the risk of ingesting sodium nitrite, and the risks of ingestion were so obvious that that there was not even a duty to warn users against it.

That principle should have disposed of this case. Yet the trial court denied Amazon's motion to dismiss entirely, permitting Plaintiffs to proceed on a host of negligence and strict-liability claims under the common law and the Washington Product Liability Act ("WPLA"). In doing so, the trial court

committed errors of law that warrant discretionary review under RAP 2.3(b)(1) and (3). Immediate review would be especially appropriate given that the WPLA's primary purposes are "delimiting the substantive liabilities of manufacturers and product sellers" and reducing "uncertainty in tort litigation." *Wash. Water Power Co.* v. *Graybar Elec. Co.*, 112 Wn.2d 847, 851, 774 P.2d 1199 (1989). Discovery has not yet begun. So review would prevent the needless expense and effort of pretrial litigation on meritless claims. Doing so would be consistent with "the intent of the legislature" in passing the WPLA, which was to reduce "unwarranted exposure to product liability litigation" and the "costs" that result. *Brewer* v. *Fibreboard Corp.*, 127 Wn.2d 512, 521, 901 P.2d 297 (1995).

ISSUES PRESENTED FOR REVIEW

1. Whether Washington law imposes a duty on manufacturers and sellers to account for purchasers using their products as a means to commit suicide. *See* RAP 2.3(b)(1) and (3).

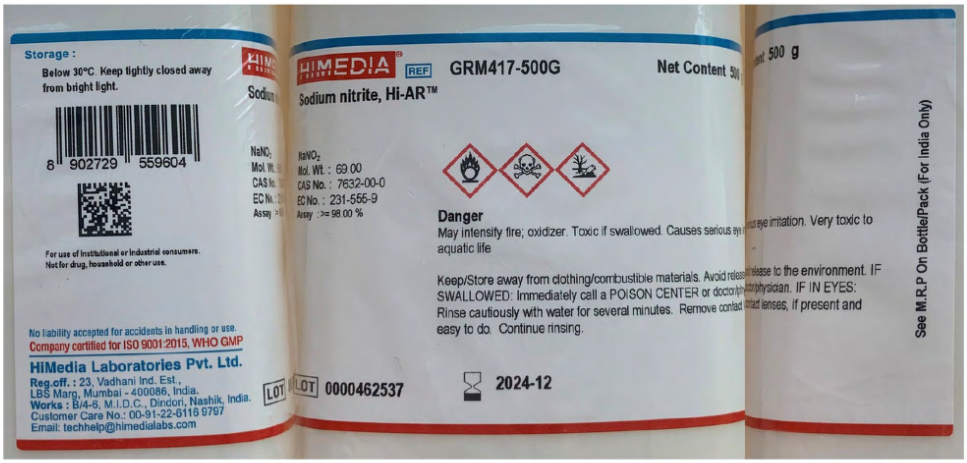
2. Whether the WPLA's provisions on manufacturer and seller liability support a claim for relief where the product user intentionally ingested an industrial-grade chemical in disregard of the warnings on its label. *See* RAP 2.3(b)(1) and (3).

STATEMENT OF THE CASE

A. Background

This case arises from the purchases of two bottles of sodium nitrite manufactured by HiMedia Laboratories and sold by Amazon. App.102, 113, 119. The bottles' label contains clear and unambiguous warnings about the danger of swallowing sodium nitrite. *See* App.104, 121. That label, which is pictured in the First Amended Complaint, contains: a skull-and-crossbones symbol, a bolded "Danger" heading, and the warnings "Toxic if swallowed" and "IF SWALLOWED: Immediately call a POISON CENTER or doctor/physician." App.104. The label also says, "For use of institutional or

industrial consumers. Not for drug, household or other use." App.040.



App.040.

Mikael purchased a bottle of HiMedia sodium nitrite in December 2020 after researching suicide methods on a website called Sanctioned Suicide. App.110-117. He also bought a digital scale from a third-party seller on Amazon. App.096. The two items were delivered separately, as the Complaint shows in a picture of "the receipt Ruth found on Mikael's phone." App.114. Several days after receiving the sodium nitrite, Mikael mixed the sodium nitrite with water and swallowed a large dose. App.113-117. Mikael did not call a poison control center or a doctor. *Id.* He did text his mother, saying he felt ill and was vomiting, but

told her she didn't need to come home. App.114-115. Ruth found his body the next morning. App.115.

Tyler bought a bottle of sodium nitrite in May 2021, along with a package of Tagamet Acid Reducer. App.119. The sodium nitrite and acid reducer were shipped separately. *See* App.120. Tyler ingested a fatal dose of sodium nitrite the next day. *Id.* Like Mikael, he did not call a poison center or a doctor. Although County officials "ruled Tyler's death a suicide by Sodium Nitrite," App.121, Plaintiffs allege he may have been "experimenting" with sodium nitrite with "no true intent to die," App.125.

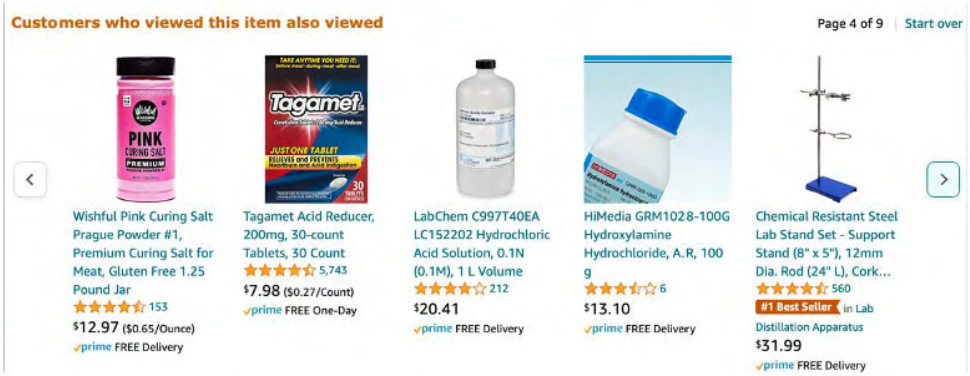
B. Procedural history

Ruth Scott filed the Original Complaint in February 2022 on behalf of her herself and Mikael's estate. *See* App.001-28. She brought claims against Amazon under the WPLA and for negligent infliction of emotional distress. *See* App.025-26. After Amazon moved to dismiss, the trial court granted leave to amend to not only add a common-law negligence claim, and but also

join Tyler's parents and estate as additional plaintiffs. App.029-57; 092-93.

The First Amended Complaint brings three claims against Amazon. Count I alleges negligence and strict-liability under the WPLA, Count II alleges common-law negligence, and Count III alleges negligent infliction of distress. App.126-128. The Complaint accuses Amazon of—among other things—"bundling" "HiMedia Sodium Nitrite" with other "items recommended by Sanctioned Suicide's website to be used in conjunction with Sodium Nitrite" for suicide. App.109. Those items recommended by Sanctioned Suicide include "scales" to measure dosage and "acid-reducers" (such as Tagamet) to prevent vomiting. App.095, 122. The Complaint also accuses Amazon of "recommending" that customers purchase those items. App.109. The screen images included in the Complaint show that the "bundling" and "recommending" to which Plaintiffs are referring are the automated "Customers who viewed this item also viewed' and "Frequently bought together"

widgets, which simply reflect browsing patterns of other users rather than recommendations by Amazon. App.105.



App.105



App.106

The Complaint also frequently references "the Peaceful Pill Handbook," a book on assisted suicide and voluntary euthanasia written by two Australians. *See* App.095, 105-106.

Plaintiffs do not and cannot allege that either Mikael or Tyler purchased this book. *See generally* App.094-130. To the contrary, Plaintiffs allege that Mikael got the inspiration to use sodium nitrite to commit suicide from the Sanctioned Suicide website—which has nothing to do with Amazon—not a book sold on Amazon. App.035.

Amazon again moved to dismiss Plaintiffs' claims. App.131-156. After deliberating for six months, the trial court denied Amazon's motion entirely. App.186-187. It did so in a two-page order without an accompanying opinion. *Id.*

Amazon filed a notice of discretionary review and a motion for RAP 2.3(b)(4) certification with the trial court. App.189-199. The trial court held a hearing on Amazon's motion on February 3, 2023, and explained, for the first time, the reasons for denying the motion. *See* App.226-272. It explained that "85" or "90 percent" of the Complaint—particularly the claims based on the "label warning and whether you can sell a product"—are not legally viable and subject to dismissal. App.233, 242. But it

denied Amazon's motion in its entirety because Amazon requested dismissal of "the whole complaint" without requesting seriatim dismissal of particular claims in the alternative. App.231. The court explained "that there's a narrow part of th[e] complaint that survives a motion to dismiss." App.234. That "thread," which the court estimated was about "five percent" of the Complaint, involved the alleged "bundling" of additional products with sodium nitrite and the "promotion of the suicide books." App.232, 234, 242. The court explained that, while this is "an appropriate case for … discretionary review," and it was "willing to certify something," the "two questions" articulated in Amazon's motion for certification were "not my questions." App.232, 236, 262, 264. The trial court therefore denied Amazon's motion, without certifying its own questions. App.263, 273.

This case is currently set for trial in April 2024. App.276. Amazon answered the Amended Complaint on January 31, 2023. App.278-298. The parties have not engaged in any discovery or

pretrial litigation beyond the motions described above, and the trial court indicated it would view favorably a motion to stay proceedings pending this Court's decision on discretionary review. App.269-270.

ARGUMENT

Discretionary review of the trial court's order is warranted. The trial court itself acknowledged that its order allows Plaintiffs to proceed on legally meritless claims. App.242, 254. What's more, the trial court acknowledged that its sole basis for denying the motion involves a question of law that it would be "appropriate" to resolve through discretionary review. App.264. This Court should do so, as review is necessary under RAP 2.3(b)(1) and (3).

A. Permitting Plaintiffs to proceed on their negligence-based claims contradicts binding precedent and contravenes the WPLA.

The Order permits Plaintiffs to proceed on their negligence-based claims against Amazon: Count I's WPLA seller-negligence claim, *see* App.127-128 ¶ 175; Count II's

common-law negligence claim, App.128 ¶¶ 177-79; and Count III's negligent-infliction-of-emotional-distress claim, *id.* ¶¶ 180-82. All of these claims are premised on the notion that Amazon had a duty of care to account for purchasers using products bought on Amazon to commit suicide. That theory is foreclosed by precedent and the WPLA.

1. Plaintiffs' negligence-based claims are foreclosed by the decisions in *Knott* and *Webstad.*

Review under RAP 2.3(b) is proper where the trial court's ruling on a question of law is contrary to binding appellate precedent. *See, e.g.*, *Washington State Dep't of Labor & Indus.* v. *Davison*, 126 Wn. App. 730, 736, 109 P.3d 479 (2005). Here, the trial court necessarily concluded that Plaintiffs had alleged a legally viable theory of duty. But any such theory is squarely foreclosed by two binding appellate decisions.

The first decision is this Court's opinion in *Knott*, 50 Wn. App. 267. There, the plaintiff brought various "product liability and tort claims against the vendor, distributor, … and

manufacturer" of a "Saturday night special" handgun used in a murder. *Id.* at 269. The plaintiff alleged "the distributor and seller" of the "handgun were negligent in the marketing and sale of Saturday night specials." *Id.* at 273. This Court rejected that claim, concluding that "no common law duty exists … to control the distribution of" an otherwise nondefective "product to the general public." *Id.* at 274. And this Court refused to recognize "a new common law cause of action for injuries sustained from the criminal use of certain handguns." *Id.* at 275. It reasoned that binding Washington Supreme Court precedent, as well as decisions from other jurisdictions, "requires a showing that the injury-causing product was defective before liability can be imposed" on a manufacturer or seller of the injury-causing product. *Id.* at 276.

The second decision is *Webstad* v. *Stortini*, 83 Wn. App. 857, 866, 868, 924 P.2d 940 (1996). The *Webstad* court held that, under Washington's common law, "no duty exists to avoid acts or omissions that lead another person to commit suicide unless

those acts or omissions directly or indirectly deprive that person of the command of his or her faculties or the control of his or her conduct." *Id.* at 866. The *Webstad* court applied that rule to reject a common-law claim premised on the theory that the defendant's "negligent conduct on the night of the suicide caused [the decedent's] death." *Id.* at 864; *see also id.* at 868 (noting that the plaintiff alleged the defendant's "behavior caused or increased the risk of harm to" the decedent). What's more, the *Webstad* court specifically considered the criminal statute that Plaintiffs below leaned on as the primary support for their novel duty theory, yet concluded that there was no duty of care. *See id.* at 866 (noting that "our Legislature has spoken on the issue of suicide in RCW 9A.36.060," yet refusing to impose a duty of care).

These decisions foreclose Plaintiffs' negligence-based claims. *Knott* holds that "there must be something wrong with the product," in either its design or warnings, to hold a seller liable under Washington law. 50 Wn. App. at 276 (cleaned up).

The trial court acknowledged, *see* App.249, and Part B of this Motion confirms, *see infra*, that there is no legally viable theory for deeming the sodium nitrite at issue here—or the other items that plaintiffs' decedents bought along with it—to be "defective" products. The trial court obviously erred in concluding that this case is not "analogous" to *Knott* because there is a Washington statute "that says you can't promote suicide." App.240, 243. Washington has a strong policy against the "criminal activity" allegedly facilitated by the sale of "Saturday night specials," yet this Court concluded it was "bound" to reject the plaintiffs' novel theory of duty. *Knott*, 50 Wn. App. at 275-76.

What's more, *Webstad*—which considered the very statute the trial court referenced—precludes the notion that there is a duty here because the product at issue was misused for suicide. If "no duty exists" under Washington's common law "to avoid acts or omissions that lead another person to commit suicide," 83 Wn. App. At 866, then there cannot be a duty under the WPLA, which was "inten[ded] to limit, rather than to expand,

liability" for manufacturers and sellers. *Buttelo* v. *Woods-Yates Am. Mach. Co.*, 72 Wn. App. 397, 405, 864 P.2d 948, 952 (1993).

* * *

Discretionary review of the court's order, to assess its determination that Plaintiffs have a legally viable theory of duty, is warranted. In Washington, whether a duty exists is a question of law" and a "threshold determination." *Degel* v. *Majestic Mobile Manor, Inc.*, 129 Wn.2d 43, 48, 914 P.2d 728, 731 (1996). The trial court's ruling is therefore "appropriate for discretionary review under RAP 2.3(b)" because "[a] useless lawsuit would be prevented by a decision" from this Court "in favor of dismissing the" claims against Amazon. *Hartley* v. *State*, 103 Wn.2d 768, 774, 698 P.2d 77 (1985). Indeed, the trial court agreed that some 95% of Plaintiffs' claims are not legally viable yet permitted 100% of them to proceed. Discretionary review would also be appropriate under the supervisory jurisdiction afforded by RAP 2.3(b)(3). By subjecting Amazon to further litigation, when on-point precedent required dismissal,

the trial court "departed from the accepted and usual course of judicial proceedings" in a manner that "call[s] for review by the appellate court." RAP 2.3(b)(3).

Review is especially appropriate here, given that the error at issue concerns the scope of WPLA liability. A primary purpose in passing the WPLA was protecting sellers from "*unwarranted exposure to product liability litigation*" and its attendant "costs." *Buttelo*, 72 Wn. App. at 405 (quoting Laws of 1981, ch. 27, § 1). So eliminating—or at least reducing—the burden of discovery and trial is an especially important consideration. *Cf. Glass* v. *Stahl Specialty Co.*, 97 Wn.2d 880, 883, 652 P.2d 948, 950 (1982) (noting that "substantial hardship would result" from "having to participate in the litigation" based on a misinterpretation of the statute). Also, resolving the duty issue now would serve a primary purpose of the WPLA: reducing "uncertainty in tort litigation." *Graybar*, 112 Wn.2d at 863.

2. Plaintiffs' negligence-based claims are preempted and precluded by the WPLA.

Permitting Plaintiffs to proceed with their negligence-based claims was improper for another reason: They are all preempted by the WPLA.

Common-Law Negligence. For starters, the WPLA, by its own terms, preempts the common-law claims in Counts II and III. The WPLA's definition of "product liability claim" has a "preemptive effect" on common-law claims falling within its scope. *Graybar*, 112 Wn.2d at 854. The definition "includes *any* claim or action brought for harm caused by the … warnings, instructions, *marketing*, … or labeling of the relevant product." RCW 7.72.010(4) (emphasis added). The definition includes "any claim or action previously based on … negligence … or … *any other* substantive legal theory except fraud, intentionally caused harm or a claim or action under the consumer protection act." *Id.* (emphasis added). As the Washington Supreme Court has noted, the "scope of the statute could not have been stated more broadly." *Graybar*, 112 Wn.2d at 854.

The plain language of the WPLA clearly encompasses Count II's common-law negligence claim. Plaintiffs' claim arises from the physical "harm" that Mikael and Tyler suffered after ingesting the "product" at issue. RCW 7.72.010(4); *see also* App.128. Amazon was the "seller" of the sodium nitrite. *See* App.127 (citing RCW 7.72). And the conduct for which they seek to hold Amazon liable—and the only connection to Plaintiffs' harms—is Amazon's alleged advertising and selling of sodium nitrite and other products on its website. *See* App.102-110. That constitutes "marketing" under RCW 7.72.010(4), because the plain meaning of "marketing" is "[t]he act or process of promoting and selling, leasing, or licensing products." Black's Law Dictionary 1161 (11th ed. 2019). So Count II's "negligence claim is product-based" and therefore "subsumed under" the WPLA. *Hue* v. *Farmboy Spray Co.*, 127 Wn.2d 67, 87, 896 P.2d 682, 693 (1995).

The trial court effectively acknowledged that Count II was preempted, explaining that the "thread" it identified was for

"negligence underneath the requisite statute," not the common law. App.239. Yet it permitted Plaintiffs to simultaneously proceed on Count I's WPLA seller-negligence claim, as well as Counts II and III's common-law claims for negligence and negligent infliction of emotional distress. *See* App.186-187. That is contrary to the basic scheme of the WPLA, which "creates a *single* cause of action for product-related harm." *Hue*, 127 Wn.2d at 75, n.10 (emphasis added).

WPLA Seller-Negligence. While Count I's seller-negligence claim is brought under the statute, it is not legally viable given the limited meaning of "negligence" under RCW 7.72.040. That conclusion is compelled by the text, history, and purpose of the WPLA, as well as the binding precedent construing it.

Starting with the text, the WPLA does create—as an "[e]xception" to manufacturer liability—a claim for "harm" that "was proximately caused by [t]he negligence of such product seller." RCW 7.72.040(1)(a). That phrase must be given the

same meaning it had "at common law" when the WPLA was enacted. *McKenna* v. *Harrison Mem'l Hosp.*, 92 Wn. App. 119, 122, 960 P.2d 486 (1998). Indeed, the Washington Supreme Court has held that courts should "align the WPLA with the common law limitations" on seller negligence. *Simonetta* v. *Viad Corp.*, 165 Wn.2d 341, 352-53, 197 P.3d 127 (2008) (addressing negligence claim against a component seller). And, when the WPLA was passed in 1981, Washington's common law "require[d] a showing that the injury-causing product was defective" due to its design or warnings. *Knott*, 50 Wn. App. at 276.

Count I's claim for seller negligence does not meet that requirement. Most of its allegations are not based on any defect in the sodium nitrite. *See* App.127 ¶¶ 174.a-d, f, l. And the allegations that do sound in failure-to-warn, *see id.* ¶¶ 174.e, g-k, are foreclosed by the text of the WPLA and the case law applying it, *see infra* Part B.

The conclusion that WPLA seller-negligence claims must be grounded on a product defect is bolstered by the WPLA's express purpose. The stated "intent of the legislature," laid out in the WPLA's preamble, was to ensure "that the right of the consumer to recover for injuries sustained as a result of an *unsafe product* not be unduly impaired.'" *Buttelo,* 72 Wn. App. at 404 (emphasis added) (quoting Laws of 1981, ch. 27, § 1). The Legislature's intent thus aligns with this Court's holding in *Knott* that "there must be something wrong with the product" itself or "there will be no liability" for the product's seller or manufacturer. 50 Wn. App. at 276 (cleaned up).

These well-established principles foreclose the trial court's conclusion that Plaintiffs' "novel theory" of WPLA seller liability—drawn from a "constellation" of considerations—falls within the scope of the statute. App.240, 242. Claims based on allegedly "improper … marketing" of a product are "subsumed under" the WPLA. *Hue*, 127 Wn.2d at 86-87. "And its purpose

is "to limit, rather than to expand, liability" for sellers. *Buttelo*, 72 Wn. App. at 405.

* * *

The Order permits Plaintiffs to proceed with negligence-based claims that violate the clear structure and limits of the WPLA. Discretionary review under RAP 2.3(b)(1) and (3) is warranted for the same basic reasons outlined in Part A.1, *supra*. The trial court not only committed an obvious error on a question of law, but also contradicted "unambiguous language in the statutory scheme and case law on the subject." *Folise* v. *Folise*, 113 Wn. App. 609, 613, 54 P.3d 222 (2002) (reviewing under RAP 2.3(b)(3)). What's more, the trial court acknowledged its order permits Plaintiffs to pursue a "novel theory" of WPLA liability. App.242. Misconstruing a liability-restricting statute in a manner that permits "novel theor[ies]" of liability, *id.*, subjects Amazon to the very "uncertainties" and "costs" of discovery and litigation that the WPLA sought to eliminate. *Graybar*, 112

Wn.2d at 863 (cleaned up). Discretionary review is therefore warranted.

B. Permitting Plaintiffs to proceed on their warning-based WPLA claims, when the injuries arise from intentional self-harm, requires review under RAP 2.3(b)(1) and (3).

The Order also let Plaintiffs proceed on their warning-based claims. *See* App.127-128 ¶¶ 174.e, g-k, 175.m-o. It did so despite the fact that Plaintiffs themselves allege that both decedents died from intentionally ingesting an industrial-grade chemical that came in a bottle with warnings indicating it was toxic and should not be swallowed. *See* App.113-122. In doing so, the trial court contradicted the plain text of the WPLA and well-established precedent applying it.

1. Permitting Plaintiffs to proceed on their warning-based manufacturer-liability claims contradicts the WPLA's text and controlling precedent.

Plaintiffs bring a cluster of claims seeking to impose manufacturer liability on Amazon under RCW 7.72.030. Specifically, they assert that Amazon failed to provide "adequate

warnings or instructions," *see* RCW 7.72.030(1)(b)-(c); App.127-128 ¶¶ 175.n-o, and sold a product that "was unsafe to an extent beyond that which would be contemplated by the ordinary consumer," *see* RCW 7.72.030(3); App.128 ¶ 175.m. These three theories all reduce to failure-to-warn claims.[1] And they are squarely foreclosed for three reasons.

First, the warnings provided with the sodium nitrite were clearly adequate. A product's warning is adequate under the WPLA if it "warn[s] of the general risk of injury and of the serious risk of injury." *Anderson* v. *Weslo, Inc.*, 79 Wn. App. 829, 840, 906 P.2d 336 (1995). This "standard" requires that the product's warning "apprise" users "of its dangers and ... advise them of the measures to take to avoid those dangers." *Baughn* v. *Honda Motor Co.*, 107 Wn.2d 127, 139-40, 727 P.2d 655 (1986)

[1] The "test" set forth in RCW 7.72.030(3), "known as the 'consumer expectation' test, cannot be met where [the] manufacturer has adequately warned consumers of the risks associated with using a product." *Reece* v. *Good Samaritan Hosp.*, 90 Wn. App. 574, 583-84, 953 P.2d 117 (1998).

(cleaned up). Here, the label (pictured above and in the First Amended Complaint) has a picture of a skull and crossbones. It says "Danger" "Toxic if swallowed." *See supra* at 4-5. And it says, with capitalized emphasis, "IF SWALLOWED, immediately call a POISON CENTER or doctor/physician." *Id.* The product warnings here clearly alerted users to "its dangers" (toxicity) and "the measures to take to avoid those dangers" (do not ingest it, and call a poison center if ingested). *Baughn*, 107 Wn.2d at 139-40 (citation omitted).

Second, even if there were a question about the warnings' adequacy, there was no duty to warn here. It is well-established that there is no duty to warn "at all in instances where a danger is obvious or known." *Baughn*, 107 Wn.2d at 139. The decedents here were not unwitting users of a dangerous product; they sought it out, mixed it with water, and swallowed it. App.113-117, 119-121. And Mikael, who indisputably had a premeditated plan to commit suicide, knew that imbibing it would cause death. App.115-117. Washington courts have held, in cases involving

far more benign activities with far younger product-users, that there was an obvious danger. That includes: a 16-year-old performing somersaults on a trampoline, *see Anderson,* 79 Wn. App. at 832; two 8-year-olds riding a mini-trail bike on public roads without helmets, *see Baughn*, 107 Wn.2d at 130-31, 139-41; and an infant using "a baby walker" that "allow[ed] the baby some mobility," *Thongchoom* v. *Graco Children's Prods., Inc.*, 117 Wn. App. 299, 305, 71 P.3d 214 (2003). Under that precedent, ingesting large doses of an industrial-grade chemical—especially one in a bottle with a skull-and-cross-bones picture on its label that was imbibed because of its known fatal properties—was an obvious danger.

Third, the decedents' deaths were not "proximately caused" by Amazon's allegedly inadequate warnings or misrepresentations. RCW 7.72.030(1), (3); *id.* 7.72.040(1). Washington courts have been clear that alleged inadequacies in the warnings or representations provided with a product cannot be a proximate cause when the product-user "*chooses to act*

without regard to" the risks the product-user is warned about. 107 Wn.2d at 143 (cleaned up). Given that the sodium nitrite's "warnings adequately informed users of the risk," and the decedents intentionally ingested it anyway, "proximate cause has not been established as a matter of law." *Anderson*, 79 Wn. App. at 840.

2. Permitting Plaintiffs to proceed on warning-based claims regarding the Amazon website was contrary to the WPLA's text and precedent.

The Order also permitted Plaintiffs to proceed on Count I's various allegations that seek to hold Amazon liable "as a product seller" for supposed shortcomings in the warnings that Plaintiffs believe should have been on the Amazon webpage for the sodium nitrite. *See* App.127 ¶ 174.e, g-k. But those claims are contrary to the plain text of the WPLA and binding precedent applying it. The WPLA imposes a duty on the manufacturer—not the seller—to provide warnings "with the product." RCW 7.72.030(1)(b). It does not require separate warnings on a website. Hence, Washington courts have held that there is no

duty to provide "additional warnings beyond those that are provided with the product." *Sherman* v. *Pfizer, Inc.*, 8 Wn. App. 2d 686, 701, 440 P.3d 1016 (2019); *accord Dearinger* v. *Eli Lilly & Co.*, 199 Wn.2d 569, 576, 510 P.3d 326 (2022). And, in any event, there can be no "proximate cause … as a matter of law" given that the decedents acted in disregard of the product's warning. *Anderson*, 79 Wn. App. at 840. Permitting Plaintiffs to proceed on such extra-statutory claims was highly improper given the WPLA's purpose of limiting seller liability.

* * *

Discretionary review under RAP 2.3(b)(1) and (3) is warranted for the same reasons discussed above. *See supra* at Part A. The Order permits Plaintiffs to proceed with claims under the WPLA, when those claims are clearly foreclosed by the WPLA's text and the precedent construing it.

CONCLUSION

Amazon respectfully requests review of the superior court's denial of its motion to dismiss.

* * *

Pursuant to RAP 18.17(b) and (c)(11), I certify that this Motion contains 4,522 words.

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CERTIFICATE OF SERVICE

I certify, under penalty of perjury under the laws of the state of Washington, that on February 13, 2023, I electronically filed the foregoing document via the Washington State Appellate Courts' Secure Portal which will send a copy of the document to all parties of record via electronic mail.

DATED this 13th day of February, 2023.

Carla Bone
Legal Practice Assistant

PERKINS COIE LLP

February 13, 2023 - 4:13 PM

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